

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents

**SUPPLEMENTAL DECLARATION OF PETER F. BLACK IN SUPPORT OF
CLAIMANT’S PETITION FOR ATTORNEY FEES IN CONNECTION WITH
RESPONDENTS’ COUNTERCLAIMS**

I, Peter F. Black, hereby declare as follows:

21. I am a Partner at Mills Black LLP and counsel for Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”). I submit this Supplemental Declaration in support of SEA’s Petition for Attorney Fees in Connection with Respondents’ Counterclaims.
22. This Supplemental Declaration is intended to supplement the Declaration of Peter F. Black in Support of Claimant’s Petition for Attorneys Fees in Connection with Respondents’ Counterclaims (the “Declaration”, Doc. No. 109); we have accordingly numbered the paragraphs of this Supplemental Declaration to continue from the numbered paragraphs in the Declaration.
23. To the extent necessary, the statements from the Declaration are incorporated herein.

24. True and correct copies of Mills Black LLP's invoices to SEA, showing the amount of time spent on the preparation of SEA's Attorney Fees Petition are attached hereto as Exhibit A. These invoices reflect necessary work performed and billed by Mills Black in connection with this matter, including the preparation of the Attorney Fees Petition filed on January 26, 2026.
25. The attached invoices of December 2025 and January 2026 reflect activities in connection with the research and preparation of Complainant's Petition for Attorney Fees, as well as activities related to Complainant's prosecution of its Shipping Act claims against Respondents.
26. In addition to Peter F. Black, H. Allen Black, Imran O. Shaukat, and Kathryn Fitzgerald, additional work on SEA's Petition for Attorney Fees was performed by Patty Brown.
27. Ms. Brown attended the University of Maryland for its Business Administration and Management Program and graduated with Honors from the Washington School for Secretaries. She has worked in a variety of legal support and administrative roles over the past 49 years at a number of major and global law firms, including Legal Secretary, paralegal, Administrative Assistant to the Managing Partner (of the Washington office of a major international firm), Trial Coordinator, and Notary Public. For the past six years, Ms. Brown has served as the Firm Administrator for Mills Black LLP. Ms. Brown has extensive experience in legal support roles including billing and office administration, and she assists the Firm in a paralegal capacity on an as-needed basis. Her hourly rate is \$150.

28. A table reflecting the number of hours, the rate at which that work was performed, and the total fees I estimate to have been reasonably incurred by SEA in connection with SEA's Petition for Attorney Fees is below.

SEA's Petition for Attorney Fees – Research and prepare client recommendation; Draft Petition and Declaration; Analysis and Redaction of Invoices				
Dec. 2025 – Invoice 1770				
Jan. 2026 – Invoice 1791				
Attorney	Activities	Hours	Rate	Total
Kate Fitzgerald	Review and provide suggestions on Petition for Attorney Fees and Declaration; review of invoice redactions	1.6	\$375	\$600.00
Imran Shaukat	Legal research; draft outline of Petition for Attorney Fees; participate in client conference; review and provide suggestions on Petition and Declaration	5.1	\$650	\$3,315.00
		4.7	\$675	\$3,172.50
Peter Black	Legal research on Petition for Attorney Fees; draft notes on same; direct I. Shaukat to prepare outline of Petition; prepare client recommendation regarding Petition for Attorney Fees; revise Petition outline; direct P. Brown to review Mills Black invoices for time estimate and review results to inform client recommendation; update Petition arguments; draft Petition for Attorney Fees; draft Declaration; review and respond to client inquiries regarding Petition; update analysis and strategy in connection with Petition; participate in client conference regarding Petition for Attorney Fees; revise Petition and Declaration; incorporate client and colleague revisions to Petition; prepare Mills Black Invoices for submission with Petition; outline time and expense breakdown for SEA Motion to Dismiss OOCL Counterclaim, SEA's Opposition to OOCL's Appeal of Motion Dismissing OOCL Counterclaim with Prejudice, and SEA Motion to Dismiss OOCL's Amended Counterclaim; finalize and file Petition for Attorney Fees and Declaration of Peter F. Black with supporting invoices	3.4	\$675	\$2,295.00
		28.3	\$725	\$20,517.50

Allen Black	Review Petition for Attorney Fees strategy; correspondence with client regarding Petition; legal research and review of draft client recommendation; conference with client regarding analysis of Petition for Attorney Fees; review and provide suggestions to Petition and related Declaration	1.0	\$800	\$800.00
		8.8	\$850	\$7,480.00
Patty Brown	Review Mills Black Invoices for entries in connection with SEA Motion to Dismiss OOCL Counterclaim, SEA's Opposition to OOCL's Appeal of Motion Dismissing OOCL Counterclaim with Prejudice, and SEA Motion to Dismiss OOCL's Amended Counterclaim; prepare time and expense estimate for review	11.8	\$150	\$1,770
			Subtotal	\$39,950.00

29. SEA incurred \$39,950.00 in attorney fees in connection with SEA's Petition for Attorney Fees, the Declaration, and preparation of supporting invoices.
30. Accordingly, the total amount sought for Attorney Fees in connection with OOCL's Counterclaims and the associated Petition is \$158,715.00 and is broken down as follows:

Phase of Matter	Subtotals
SEA's Motion to Dismiss OOCL's Counterclaim:	\$37,927.50
SEA's Reply to OOCL's Appeal of Order Granting Motion to Dismiss OOCL Counterclaim:	\$28,582.50
SEA's Motion to Dismiss OOCL's Amended Counterclaim:	\$52,255.00
SEA's Petition for Attorney Fees:	\$39,950.00
Total:	\$158,715.00

I declare under the penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed this 27th day of February, 2026, in Washington, DC.

/s/ **Peter F. Black**

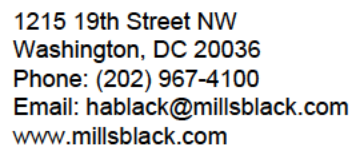
Peter Fischer Black

Exhibit A

Mills Black LLP Invoices

December 2025 – Invoice Number 1770

January 2026 – Invoice Number 1791



Invoice # 1770
Date: 01/29/2026
Due On: 02/28/2026
PO 01292026

SEA - Samsung Electronics America, Inc.
Contact Name: Kenneth Murata
Email: ken.murata@sea.samsung.com
700 Sylvan Avenue
Englewood Cliffs, NJ 07632

SEA -00001

OOCL Demurrage and Detention Dispute

[illegible]

[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
12/03/2025	Imran Shaukat	PETITION FOR ATTORNEY FEES: Continue legal research on FMC's authority to award attorney's fees; draft argument outline of OOCL's actions in connection with expansion of litigation proceedings; revise outline regarding same	5.10	\$650.00	\$3,315.00
[REDACTED]		[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

[illegible]

[illegible]

[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
12/22/2025	Peter Black	ATTORNEY FEES PETITION: Draft revisions to attorney fee petition; additional legal research on same	0.80	\$675.00 \$540.00
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
12/22/2025	Allen Black	Correspondence with J. Caballero re status of matter	0.10	\$800.00 \$80.00
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

[REDACTED]					
[REDACTED]			[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]			[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]					
[REDACTED]			[REDACTED]	[REDACTED]	[REDACTED]
12/31/2025	Allen Black	Draft correspondence to K. Murata re FMC decision to note review ALJ Order of Dismissal of OOCL counterclaim	0.10	\$800.00	\$80.00
12/31/2025	Allen Black	Review facts and develop strategy for matter: Confer with team re impact of FMC decision; review ALJ Order of Dismissal of OOCL counterclaim	0.30	\$800.00	\$240.00
12/31/2025	Allen Black	C200 - Researching Law: Review applicable rules re impact of Commission decision to not review ALJ Order of Dismissal	0.30	\$800.00	\$240.00
			[REDACTED]		[REDACTED]

Expenses

Date	Attorney	Description	Total
[REDACTED]			[REDACTED]
Expenses Subtotal			[REDACTED]

Time Keeper	Quantity	Rate	Total
Allen Black	[REDACTED]	[REDACTED]	[REDACTED]
Peter Black	[REDACTED]	[REDACTED]	[REDACTED]
Kate Fitzgerald	[REDACTED]	[REDACTED]	[REDACTED]
Kate Fitzgerald	[REDACTED]	[REDACTED]	[REDACTED]
Imran Shaukat	[REDACTED]	[REDACTED]	[REDACTED]
Subtotal			[REDACTED]
Total			[REDACTED]

Detailed Statement of Account

Current Invoice

Invoice Number	Due On	Amount Due	Payments Received	Balance Due
1770	02/28/2026			
Outstanding Balance				
Total Amount Outstanding				

Please make all amounts payable to: Mills Black LLP

Please pay within 30 days.

Remittance Advice

Checking Information

Remit checks to: Mills Black LLP

Wire Transfer Information

Bank Name/Address: Bank of America
8300 Greensboro Drive
McLean, VA 22102

Bank ABA/Routing #: Wire: 026009593; ACH: 054001204

Name/Account #: Mills Black LLP
1215 19th Street, NW
Washington, DC 20036
Account: 226003163582

Please include the invoice number 1770 as an additional reference so we may accurately identify and apply your payment.

Please provide adequate payment to cover the wire fees assessed by your financial institution.



1215 19th Street NW
Washington, DC 20036
Phone: (202) 967-4100
Email: hablack@millsblack.com
www.millsblack.com

INVOICE

Invoice # 1791
Date: 02/11/2026
Due On: 03/13/2026
PO 02112026

SEA - Samsung Electronics America, Inc.
Contact Name: Kenneth Murata
Email: ken.murata@sea.samsung.com
700 Sylvan Avenue
Englewood Cliffs, NJ 07632

SEA -00001

OOCL Demurrage and Detention Dispute

Services

Date	Attorney	Description	Quantity	Rate	Total
01/01/2026	Allen Black	A106 - Communicate with Client: Review notice from FMC re Commission decision to not review dismissal of OOCL counterclaim; correspondence to client re matter	0.20	\$850.00	\$170.00

[illegible]

[illegible]

[illegible]

01/19/2026	Peter Black	PETITION FOR ATTORNEY FEES: Review and respond to client request regarding attorney fees	0.20	\$725.00	\$145.00
01/19/2026	Allen Black	A106 - Communicate with Client: Correspondence to K. Murata re potential petition for attorneys' fees	0.10	\$850.00	\$85.00

01/20/2026	Peter Black	PETITION FOR ATTORNEY FEES: review request from client regarding full analysis of Attorney Fees Petition; draft and revise recommendation to client regarding same	1.50	\$725.00	\$1,087.50
01/20/2026	Allen Black	Confer with P. Black re draft client advice, finalize advice	0.10	\$850.00	\$85.00
01/20/2026	Allen Black	Review correspondence from client re analysis of potential for success on Petition for Attorney Fees	0.10	\$850.00	\$85.00
01/20/2026	Allen Black	Review draft client advice re evaluation of potential Petition for Attorneys' fees	0.60	\$850.00	\$510.00
01/21/2026	Imran Shaukat	Preparation and participation on conference call with K. Murata, J. Caballero, A. Black, and P. Black	0.50	\$675.00	\$337.50

01/21/2026	Peter Black	PETITION FOR ATTORNEY FEES: Review request from client regarding meeting to discuss possible petition for attorney fees; coordinate meeting with client regarding attorney fee petition analysis and recommendation; draft responses to client inquiries; prepare for and participate in conference regarding possible attorney fees petition	1.20	\$725.00	\$870.00
01/21/2026	Peter Black	PETITION FOR ATTORNEY FEES: Planning session regarding attorney fees petition with A. Black, K. Fitzgerald, and I. Shaukat; revise outline for Petition; draft petition for attorney fees; confirm legal research on same	2.90	\$725.00	\$2,102.50
01/21/2026	Allen Black	Correspondence with P. Black re strategy for matter	0.30	\$850.00	\$255.00
01/21/2026	Allen Black	Confer with P. Black re petition for attorneys' fees	0.30	\$850.00	\$255.00
01/21/2026	Allen Black	Confer with P. Black and I. Shaukat re results of P. Black conference with attorneys handling similar matter	0.50	\$850.00	\$425.00

01/22/2026	Allen Black	Review draft Petition for Attorneys' Fees, provide suggestions re same	0.90	\$850.00	\$765.00
01/22/2026	Allen Black	Review client correspondence re Petition for Attorneys' Fees, provide response to same	0.20	\$850.00	\$170.00
01/23/2026	Allen Black	Review facts and develop strategy for matter: Phone conference with P. Black re drafting of Affidavit in support of Petition for Fees	0.10	\$850.00	\$85.00
01/23/2026	Allen Black	Confer with P. Black re requirements for proof of fees incurred in support of Affidavit in support of Petition for Fees	0.10	\$850.00	\$85.00

[illegible]

01/24/2026	Imran Shaukat	Revisions to Petition for Attorneys' Fees	1.50	\$675.00	\$1,012.50
01/24/2026	Peter Black	PETITION FOR ATTORNEY FEES: Continue drafting declaration; revise declaration; review and analysis of bills from December 2024 to November 2025 for time related to OOCL Counterclaims (SEA Motion to Dismiss & Reply, SEA Opposition to Appeal of Order Granting Motion to Dismiss Counterclaim; and SEA Motion to Dismiss Amended Counterclaim & Reply); draft note to T. Mills, A. Black, and I. Shaukat regarding Petition, Declaration, and supporting invoices and request additional review	4.40	\$725.00	\$3,190.00
01/24/2026	Allen Black	Review updated Petition for Attorneys' fees and Declaration, revise same	2.30	\$850.00	\$1,955.00
01/25/2026	Kate Fitzgerald	Read and edit petition for attorneys fees	0.80	\$375.00	\$300.00
01/25/2026	Peter Black	PETITION FOR ATTORNEY FEES: Continue analysis of bills from December 2024 through November 2025; redactions of same; calculation of fees; draft breakdown of fees	3.20	\$725.00	\$2,320.00
01/25/2026	Allen Black	Review and revise draft of Petition for Attorneys'	1.40	\$850.00	\$1,190.00

Fees and Declaration					
01/25/2026	Allen Black	Correspondence to Client team re updated Petition and Declaration for Attorneys' Fees	0.10	\$850.00	\$85.00
01/26/2026	Imran Shaukat	Review of additional revisions to SEA Petition for fees received from K. Murata and J. Caballero; provide final suggestions to petition and declaration for attorney fees	2.70	\$675.00	\$1,822.50
01/26/2026	Kate Fitzgerald	Provide suggestions to petition for attorneys fees; review of invoice entries for redaction errors	0.80	\$375.00	\$300.00
01/26/2026	Peter Black	PETITION FOR ATTORNEY FEES: Recalculate hours to submit with Petition to ensure accuracy; revise table breakdown; additional invoice redactions; confer with A. Black regarding redactions; confer with client regarding revisions; revise declaration; revise petition; incorporate revisions and circulate final version for review; draft note to client; additional revisions and redactions; further recalculation of fees; compile and compress exhibits; file Petition, Declaration, and supporting invoices with FMC	5.30	\$725.00	\$3,842.50

[illegible]

[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
01/28/2026	Allen Black	A106 - Communicate with Client: Review correspondence from J. Caballero re Petition for fees, draft response re scope of fees sought and report to client team	0.20	\$850.00 \$170.00
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

[illegible]

Expenses

Date	Attorney	Description	Total
Expenses Subtotal			

Time Keeper	Quantity	Rate	Total
Allen Black			
Peter Black			
Kate Fitzgerald			
Tom Mills			
Imran Shaukat			
Patty Brown			
Subtotal			
Total			

Detailed Statement of Account**Other Invoices**

Invoice Number	Due On	Amount Due	Payments Received	Balance Due
1770	02/28/2026			

Current Invoice

Invoice Number	Due On	Amount Due	Payments Received	Balance Due
1791	03/13/2026			
Outstanding Balance				
Total Amount Outstanding				

Please make all amounts payable to: Mills Black LLP

Please pay within 30 days.

Remittance Advice

Checking Information

Remit checks to: Mills Black LLP

Wire Transfer Information

Bank Name/Address: Bank of America
8300 Greensboro Drive
McLean, VA 22102

Bank ABA/Routing #: Wire: 026009593; ACH: 054001204

Name/Account #: Mills Black LLP
1215 19th Street, NW
Washington, DC 20036
Account: 226003163582

Please include the invoice number 1791 as an additional reference so we may accurately identify and apply your payment.

Please provide adequate payment to cover the wire fees assessed by your financial institution.